UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,

v.

JEFFREY BERNECKY,

Defendant.

Case No. 6:18-CR-06018-DGL-MWP

Hon. David G. Larimer

MOTION TO CLARIFY OR MODIFY CONDITIONS OF SUPERVISED RELEASE AND FOR APPOINTMENT OF COUNSEL

(Pursuant to 18 U.S.C. § 3583(e)(2) and Fed. R. Crim. P. 32.1(c))

Defendant Jeffrey Bernecky, appearing pro se, moves under 18 U.S.C. § 3583(e)(2) and Federal Rule of Criminal Procedure 32.1(c) for an order clarifying, and where necessary modifying, four conditions of the supervised release imposed by the Judgment entered June 12, 2018 (Dkt. No. 28), and for appointment of counsel under 18 U.S.C. § 3006A. The motion rests on the accompanying Certification of Jeffrey Bernecky ("Certification") and Exhibits A through C.[1]

I. PRELIMINARY STATEMENT

A condition of supervised release has one author: this Court. In 2018 the Court wrote the conditions that govern Mr. Bernecky's ten-year term. Since his release in July 2026, he has lived under a second, longer set of rules that no court wrote. He has been told he must disclose his full offense history to every sexual partner, prove that partner's "informed consent" to his therapist before any relationship begins, and display his conviction on any adult dating profile he uses. He has been told he may not speak to any adult in an online game unless he knows that person in real life. He was reproached for attending an event limited to people seventeen and older because a

[1]The special conditions on page 5 of the Judgment are not lettered. For convenience, this motion refers to them as Special Conditions (a) through (j) in the order in which they appear: (a) computer and internet monitoring; (b) sex-offense-specific treatment; (c) contact with minors; (d) financial monitoring; (e) registration; (f) search; (g) polygraph; (h) mental-health treatment; (i) financial disclosure; and (j) child pornography. Exhibit A is the Computer Monitoring Program Participant Agreement. Exhibit B is the R.K.K.S. Mental Health Counseling PLLC Treatment Contract dated August 19, 2026. Its "Special Conditions" paragraphs are unnumbered and are cited by their order on the page. Exhibit C is the Authorization to Release Confidential Information signed July 30, 2026.

minor "could have snuck in." He has signed a treatment contract that calls its terms "conditions" and reports every claimed breach to his probation officer. And the monitoring software that the Judgment requires to avoid privileged and lawful private material "as much as possible" has been used to police lawful conversations with adults.

None of these rules appears in the Judgment, and several contradict it. The most serious of them, compelled disclosure of his history to third parties, traces to a condition this District replaced in every judgment in 2019. The Second Circuit has held, in an appeal from this Court, that the replacement makes any duty to notify "wholly contingent on a subsequent determination by the district court." *United States v. Traficante*, 966 F.3d 99, 104 (2d Cir. 2020). This Court has made no such determination.

Mr. Bernecky does not ask the Court to set aside any condition it imposed or to revisit his sentence. He asks the Court to say what its conditions mean, so that the people who supervise and treat him carry out the sentence the Court imposed rather than one they have written themselves. Rule 32.1 exists for exactly this: a supervisee "should be able to obtain resolution of a dispute over an ambiguous term or the meaning of a condition without first having to violate it." Fed. R. Crim. P. 32.1 advisory committee's note to 1979 addition. With the winter holidays weeks away, one part of the motion cannot wait. Mr. Bernecky asks the Court to use the power its own minor-contact condition reserves to it and approve his presence at family gatherings.

Mr. Bernecky has had help preparing these papers, but he is not a lawyer and cannot adequately litigate these questions alone. He files now because the rules described below are being enforced now. Filing does not waive his request for counsel (Part III.F).

II. STATEMENT OF FACTS

A. The disclosure rules

The Treatment Contract that R.K.K.S. Mental Health Counseling PLLC required Mr. Bernecky to sign on August 19, 2026, provides:

> I understand that I am required to disclose all my intimate partners to treatment staff. I understand that I need to provide acceptable proof

> of informed consent to treatment staff which includes disclosure of my offense history in full prior to engaging in a sexual relationship.

Ex. B, Special Conditions ¶ 2. Mr. Bernecky has also been told that if he uses adult dating or social-media applications such as Grindr, his profile must display his conviction. Certification ¶ __. The same contract provides that "the use of any platforms," including "social media, dating sites, email, . . . gaming services, [and] text apps," "should be approved by treatment staff prior to use." Ex. B, Special Conditions ¶ 5. Its line for individualized terms reads "No special conditions designated." *Id.* ¶ 10. It closes with Mr. Bernecky's acknowledgment that he is "required to follow all the conditions listed above regarding my treatment and behavior," *id.* at 3, and it warns that "my supervising officer will be notified of any violation of this Treatment Contract," *id.*, Consequences ¶ 1.

The effect has been immediate. Mr. Bernecky goes to work and comes home. He has not pursued a relationship, because any relationship would have to begin with a full recitation of his offense history and a report to his therapist. Certification ¶ __.

The Judgment as printed contains the original Standard Condition 12, which allows the probation officer, on the officer's own determination that Mr. Bernecky "pose[s] a risk to another person," to require him to notify that person. Dkt. No. 28 at 4. On March 22, 2019, this District ordered that condition removed from every judgment and replaced with the following:

> If the court determines in consultation with your probation officer that, based on your criminal record, personal history and characteristics, and the nature and circumstances of your offense, you pose a risk of committing further crimes against another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction.

Amended Standing Order, *In re United States v. Boles* (W.D.N.Y. Mar. 22, 2019) (Geraci, C.J.). When his supervision began, the conditions Probation reviewed with Mr. Bernecky and asked him to acknowledge still contained the original Standard Condition 12, not the replacement. Certification ¶ __. No court has made a risk determination as to him. *Id.* ¶ __.

B. The minor-contact directives

Special Condition (c) provides that Mr. Bernecky "shall not have deliberate contact with any child under 18 years of age, excluding his biological or adopted children, unless approved by the probation officer or by the Court," and "shall not loiter within 100 feet of school yards, playgrounds, arcades or other places primarily used by children under the age of 18." Dkt. No. 28 at 5.

Since his release, Mr. Bernecky attended an event restricted to people seventeen and older. Treatment staff said he should have told them about it in advance because of the "potential for pornographic material." His probation officer told him he should not have gone because minors could have been present, including minors who "could have snuck in" without his knowledge. When he pointed out that a grocery store carries a far greater chance of being near minors, he was told a judge would not see it that way. Certification ¶ __.

During the same period, Probation told Mr. Bernecky that he may not speak to anyone while playing online games on his phone, because there is no way to verify anyone's age or identity, and that he may not speak to anyone he does not personally know. Certification ¶ __. Probation knew of his in-game conversations from the computer monitoring. *Id.* ¶ __. Those conversations were with adults, and he had stated in them that he would not speak with anyone under eighteen. *Id.* ¶ __. He has not spoken to anyone in a game since. *Id.* ¶ __. The Treatment Contract separately requires him to report "any accidental, incidental, or intentional contact" with anyone under eighteen or with "vulnerable populations (as defined by treatment staff)." Ex. B, Special Conditions ¶ 9.

Mr. Bernecky has no biological or adopted children. Certification ¶ __. His sister had children while he was in prison, after this Court sentenced him. *Id.* ¶ __. His parents and his sister know of his conviction. *Id.* ¶ __. His family gathers at his mother's home for Thanksgiving, Christmas, and other holidays, and his sister brings her children. *Id.* ¶ __. Because the condition's family exception covers only his own children, nothing in it permits deliberate contact with his nieces and nephews at those gatherings without approval.

C. The Treatment Contract

Special Condition (b) requires Mr. Bernecky to "participate in a sex offense-specific treatment program and follow the rules and regulations of that program," and provides that "[t]he probation officer will supervise the details of the defendant's participation in the program, including the selection of a provider and schedule." Dkt. No. 28 at 5. Special Condition (h) requires mental-health treatment on similar terms. *Id.*

Beyond the provisions already described, the Treatment Contract forbids "sexually stimulating material(s) of any kind as defined by my treatment staff." Ex. B, Special Conditions ¶ 8. It requires notice within 24 hours "of any relapse in problematic behavior" and of changes in "criminal behaviors." *Id.*, Code of Conduct ¶¶ 5–6. It provides that "law enforcement may be contacted." *Id.*, Consequences ¶ 1. It authorizes immediate discharge for "other problem behavior not outlined in this Treatment Contract, as determined in the sole discretion of the staff of the Practice." *Id.* ¶ 2(vi). It assigns other discharge decisions to a "Treatment Team" made up of "all therapists in the Practice, the Probation Officer, and the Probation Supervisor." *Id.* ¶ 3(a). It incorporates a release, signed July 30, 2026, that authorizes disclosure to Probation of "psychotherapy notes" and warns that revoking it "could be considered a violation of a condition of my post-conviction supervision." Ex. C; Ex. B, Confidentiality ¶ 1. In a one-on-one session, his therapist told him that registered sex offenders are not allowed to take Viagra, even for a medical need. Certification ¶ __.

Mr. Bernecky will attend every scheduled session, complete every assignment, and discuss the conduct of which he was convicted. Certification ¶ __.

D. The monitoring program

Special Condition (a) requires Mr. Bernecky to participate in the Computer and Internet Monitoring Program (CIMP). It authorizes surveillance of devices "owned or operated by the defendant," requires notice of devices "that will be used," and provides that Probation is notified of "impermissible/suspicious activity or communications." Dkt. No. 28 at 5. It ends with a limit: "Any

such monitoring or examinations shall be designed to avoid, as much as possible, reading any privileged information or any private material that is not illegal or reasonably likely to lead to illegal material or evidence related to illegal activity." *Id.*

The monitoring software on Mr. Bernecky's phone records what he types and what appears on his screen. Certification ¶ __. No one has told him how the monitoring is designed to avoid privileged material, or whether his communications with this Court and his drafts of legal papers, including this motion, are excluded from review. *Id.* ¶ __. The CIMP Participant Agreement requires notice of every device he "own[s] or ha[s] access to," Ex. A ¶ 2. It forbids any "encrypted email accounts," *id.* ¶ 9, and "any type of encryption unless pre-approved," *id.* ¶ 17. It bars installing "any anti-virus, anti-spyware, firewall, or internet security application" without advance authorization, *id.* ¶ 16, and requires permission before "ALL computer repairs and/or alterations," *id.* ¶ 15; *see id.* ¶ 14.

Mr. Bernecky pleaded guilty to possessing child pornography after a prior conviction for possession and distribution of child pornography. Dkt. No. 28 at 1. The Court imposed 120 months' imprisonment and ten years of supervised release. *Id.* at 2–3. He was released on or about July 30, 2026, and is employed. Certification ¶ __.

III. ARGUMENT

A. The Court may decide what its conditions mean now, before any violation is charged

The Court may "modify, reduce, or enlarge the conditions of supervised release, at any time prior to the expiration or termination of the term." 18 U.S.C. § 3583(e)(2). No showing of changed circumstances is required: "[s]o long as the court, when modifying supervised release conditions, considers the relevant 18 U.S.C. § 3553(a) sentencing factors, there is no additional requirement that it make a finding of new or changed circumstances with respect to the defendant." *United States v. Parisi*, 821 F.3d 343, 347 (2d Cir. 2016). When a probation officer oversteps, the supervisee may "seek recourse before the sentencing court." *United States v. Kunz*, 68 F.4th 748, 774 n.14 (2d Cir. 2023) (quoting *United States v. Villafane-Lozada*, 973 F.3d 147, 153 (2d Cir.

2020)). The advisory committee contemplated exactly the dispute presented here: "in cases of neglect, overwork, or simply unreasonableness on the part of the probation officer, the probationer should have recourse to the sentencing court when a condition needs clarification or modification." Fed. R. Crim. P. 32.1 advisory committee's note to 1979 addition.

United States v. Lussier holds that "the illegality of a condition of supervised release is not a proper ground for modification" under § 3583(e)(2). 104 F.3d 32, 34 (2d Cir. 1997). This motion makes no illegality claim. It asks what the 2018 conditions mean, asks the Court to hold that rules found nowhere in the Judgment cannot be enforced as though they were, and asks for one favorable modification on facts the Court could not have known in 2018. When the Court wrote these conditions, there was no treatment provider, no contract, no monitoring configuration, no game-chat directive, and no nieces or nephews. Each now exists.

The dispute is ripe. The rules at issue have already been issued, signed, and enforced. A challenge to "a specific condition, imposed right now, applicable right now, and seeming to delegate authority right now" is ripe. *Kunz*, 68 F.4th at 769. The Second Circuit recently distinguished *Traficante*'s ripeness holding on precisely this ground, because the delegation challenged there "has already occurred and is not contingent on future judicial action." *United States v. Stuart*, No. 25-599, ___ F.4th ___ (2d Cir. Sept. 3, 2026) (quoting *Villafane-Lozada*, 973 F.3d at 151). The alternative to deciding these questions now is deciding them later, at a violation hearing, with Mr. Bernecky's liberty at stake and the same questions still unanswered.

B. No one may require Mr. Bernecky to disclose his history to partners or the public, because the Court has never made the determination the amended risk condition requires

1. *The only operative risk condition requires a court determination, and there has been none*

The printed Standard Condition 12 is no longer part of any judgment in this District. The Second Circuit held in *United States v. Boles* that "the 'risk' condition is vague and affords too much discretion to the probation officer," and vacated it. 914 F.3d 95, 111–12 (2d Cir. 2019). That holding applied settled law: "the court must determine, rather than leaving to the discretion of the

probation officer, whether such notification is required." *United States v. Peterson*, 248 F.3d 79, 86 (2d Cir. 2001) (per curiam). This District responded with the Amended Standing Order. In *Traficante*, an appeal from this Court, the Second Circuit held that "the standing order amends all judgments in the district to replace the prior standard risk condition with the following new condition," and that the replacement "clarifies that any obligation to notify at-risk individuals is wholly contingent on a subsequent determination by the district court that the supervisee poses a specific risk to such persons." 966 F.3d at 104. The printed condition "can no longer be imposed." *Id.* at 100. Three more published decisions read the order the same way. *United States v. Rasheed*, 981 F.3d 187 (2d Cir. 2020); *United States v. Bryant*, 976 F.3d 165, 182 (2d Cir. 2020); *United States v. Birkedahl*, 973 F.3d 49 (2d Cir. 2020).

The operative condition therefore imposes no present duty to tell anyone anything. No court has determined that he poses "a risk of committing further crimes against another person." Until one does, neither Probation nor anyone acting on its behalf may require any notification. The conditions Mr. Bernecky was asked to acknowledge at the start of supervision still carried the vacated text. That is reason enough for the Court to say plainly which condition governs.

2. *A treatment contract and an oral instruction cannot impose what the risk condition withholds*

The partner-disclosure term and the profile instruction are risk notification under another name. Each requires Mr. Bernecky to inform third parties of his criminal history because of the risk that history is thought to represent. Each reaches further than any version of Standard Condition 12 ever did. The vacated condition at least required an officer's determination of risk to a particular person. The contract requires disclosure to every sexual partner, in full, before any relationship begins, proven to the therapist's satisfaction. The profile instruction requires disclosure to everyone who views a dating application. Neither rests on any determination by anyone.

A label does not change the analysis. In *United States v. Browder*, the provider's agreement would have required Browder to seek approval before contact with his own children, whom his condition exempted. "The key question is not whether permission, if sought, would be granted; it is

whether Browder can be required, by the Probation Office or its designee, to ask in the first place. Because such a requirement … would contradict, rather than execute, Browder's sentence, the Probation Office was plainly without power to impose it." 866 F.3d 504, 514 (2d Cir. 2017). Treatment "cannot be implemented in a way that directly conflicts with other, specific conditions of his supervised release." *Id.* at 513 n.37. The amended risk condition is a specific condition. It puts the decision whether anyone must be notified with the Court, after a finding. A provider rule requiring notification without that finding contradicts it.

The amended condition also defines whom notification may protect: people at risk of "further crimes." Mr. Bernecky's convictions are for possessing and, in the earlier case, distributing child pornography. Nothing in those convictions suggests a risk that he will commit a crime against a consenting adult partner, still less against every adult who views a dating profile. Nor does the CIMP Agreement's bar on "misleading profiles," Ex. A ¶ 10, supply the missing authority. A profile that does not announce a conviction misleads no one, and an agreement term cannot add a duty the Judgment does not contain. *Kunz*, 68 F.4th at 766.

3. *Even a court could not impose this requirement on this record*

The Second Circuit vacated a court-imposed condition milder than this one in *United States v. Reeves*, 591 F.3d 77 (2d Cir. 2010). That condition required a child-pornography defendant to notify Probation of any "significant romantic relationship" and inform the other person of his sex-offense history. *Id.* at 80. It was vague because it had "no objective baseline." *Id.* at 81. It burdened the right of intimate association, which triggers heightened scrutiny: a deprivation of a fundamental liberty is "reasonably necessary" only if it "is narrowly tailored to serve a compelling government interest." *United States v. Myers*, 426 F.3d 117, 126 (2d Cir. 2005); *see Reeves*, 591 F.3d at 82–83. And it failed that test "since it applies to any significant romantic relationship, even those which would not bring Reeves into contact with children." *Reeves*, 591 F.3d at 83. Reeves, unlike Mr. Bernecky, had no prior sex offense, and the court relied on that history in holding the condition unrelated to sentencing goals. *Id.* at 79, 82. Its vagueness and tailoring holdings do not

depend on that history, and both apply with more force here. The contract term covers every sexual partner, not only significant ones. Its standard, "acceptable proof of informed consent," is set by the therapist. And it reaches relationships with adults who have no connection to any child. *Reeves* also predicted the cost: such a requirement "would almost certainly adversely affect, and could very well prematurely end, any intimate relationship he might develop, placing him at a greater risk of social isolation and thus impair, rather than enhance, his rehabilitation." *Id.* at 82. The record here bears that prediction out.

The profile instruction fails for an additional reason. Citizens "have a First Amendment right to access the Internet," *United States v. Eaglin*, 913 F.3d 88, 96 (2d Cir. 2019), and *Eaglin* rejected the government's effort to justify an internet restriction as a way to keep a sex offender from identifying romantic or sexual partners, because monitoring remained available, *id.* at 98. Mr. Bernecky is monitored now.

4. *Any request for a risk finding must proceed on notice, with a hearing and counsel*

Parisi permits the government to ask the Court to make a risk determination now. If it does, that request would "enlarge" the condition and entitle Mr. Bernecky to a hearing under Rule 32.1(c). *Traficante*, 966 F.3d at 105. The finding would have to define the risk with enough precision to constrain Probation's discretion, as the district court's findings did in *Stuart*. And it would have to be made on a record Mr. Bernecky can contest, with counsel, not through an officer's consultation with the Court outside his presence. Until then, the Court should declare that no notification duty exists.

C. "Deliberate contact with any child" does not forbid talking to adults, attending adult events, or spending the holidays with family

1. *The condition reaches deliberate contact with a known child, and nothing else*

"Generally, supervised release provisions are read to exclude inadvertent violations." *United States v. Johnson*, 446 F.3d 272, 281 (2d Cir. 2006) (citing *Arciniega v. Freeman*, 404 U.S.

4, 4 (1971) (per curiam)). *Johnson* read the contact condition before it to require "some purposeful initiative" and held that "no violation occurs where incidental contact is followed by immediate removal." *Id.* Mr. Bernecky's condition needs no construction to reach that result. It says "deliberate."

The game-chat directive turns that condition upside down. A conversation with an adult, verified or not, involves no child at all, let alone deliberate contact with one. A rule that forbids speaking to anyone not personally known, because anyone might be a minor, replaces "deliberate contact with any child" with "any communication with any person not proven to be an adult." That instruction would "contradict, rather than execute," the sentence. *Browder*, 866 F.3d at 514. A general bar on speaking with strangers online would be a significant restriction on liberty and speech that "would need to be imposed by the court and justified by particularized on-the-record findings." *Kunz*, 68 F.4th at 767; *see Eaglin*, 913 F.3d at 96. The Second Circuit made the same point about an older technology: "Although a defendant might use the telephone to commit fraud, this would not justify a condition of probation that includes an absolute bar on the use of telephones." *Peterson*, 248 F.3d at 83. Standard Condition 13 does not fill the gap. It requires compliance with instructions "related to the conditions of supervision," Dkt. No. 28 at 4, and an instruction forbidding what the condition permits does not carry that condition out.[2] The workable rule is the one *Johnson* supplies: if Mr. Bernecky learns or has reason to believe he is communicating with someone under eighteen, he ends the contact.

The 17+ event reasoning fails for the same reason, and the loitering clause does not reach it. An event that excludes everyone under seventeen is not a place "primarily used by children." If the possibility that a minor "could have snuck in" made attendance a violation, Mr. Bernecky could not enter a grocery store, ride a bus, or go to work. *Johnson* excludes exactly this kind of incidental presence.

[2] *United States v. Salvador*, 180 F.4th 470 (2d Cir. 2026), is not to the contrary. On plain-error review, it upheld a condition requiring compliance with the instructions of immigration authorities, comparing it to Standard Condition 13. It did not hold that an officer's instruction may enlarge a condition the court imposed, and it emphasized that the condition handed no sentencing decision to the outside authority.

The contract's demand that Mr. Bernecky report "accidental" and "incidental" contact with minors and with undefined "vulnerable populations," Ex. B, Special Conditions ¶ 9, is *Browder*'s exact scenario: a provider term "more punitive" than "the condition to which [he] was actually sentenced." 866 F.3d at 513.

2. *The Court should approve family gatherings now*

Sharing a holiday dinner with relatives whose children happen to be present falls outside "deliberate contact" in any event. The condition itself offers a cleaner answer: deliberate contact is permitted when "approved by the probation officer or by the Court." Dkt. No. 28 at 5. The Second Circuit has recognized that a preapproval requirement of this kind would otherwise reach "all routine family interaction," including "Thanksgiving dinners or seders or christenings." *United States v. Jenkins*, 854 F.3d 181, 194 (2d Cir. 2017). Mr. Bernecky has no children of his own, so the condition's family exception covers no one in his life. His sister's children were born after sentencing; the Court could not have considered them in 2018. His parents and his sister know his history and will be present. Mr. Bernecky asks the Court to approve, under Special Condition (c), his attendance at family gatherings at the homes of his parents and his sister, including Thanksgiving, Christmas, and New Year's, provided that a parent or his sister is present and that he has no unsupervised one-on-one contact with any minor.

D. "Follow the rules and regulations of that program" does not make a private treatment contract part of the sentence

"The power to impose special conditions of supervised release, including participation in a substance abuse program, is vested exclusively in the district court." *United States v. Matta*, 777 F.3d 116, 122 (2d Cir. 2015). The court may delegate details, such as the choice of provider and schedule, but "may not delegate to the Probation Department decisionmaking authority which would make a defendant's liberty itself contingent on a probation officer's exercise of discretion." *Id.* Special Condition (b) observes that line: Probation supervises "the details of the defendant's

participation in the program, including the selection of a provider and schedule." Dkt. No. 28 at 5. A provider, which is further removed from the Court than Probation, can hold no greater power.

Browder applied this principle to a treatment agreement. The Second Circuit reversed a violation because "the treatment agreement would have subjected him to a more punitive condition governing contact with minors than did the condition to which Browder was actually sentenced by the District Court. Browder was therefore well within his rights to object to that term of the agreement." 866 F.3d at 513. It faulted the agreement for requiring approval of "'the treatment team'—something the District Court did not address and over which it had no direct oversight." *Id.* at 514. It noted that the agreement "even refers to its terms as 'conditions,'" *id.* at 513 n.38, as Mr. Bernecky's does. On remand, Judge Vilardo re-imposed a treatment condition in the same words as Mr. Bernecky's, including "follow the rules and regulations of that program," and in the same decision held that "Browder cannot be forced to sign or abide by agreements that reach beyond the Court's ordered conditions." *United States v. Browder*, No. 1:10-CR-263, Decision & Order (W.D.N.Y. Mar. 14, 2018). The clause reaches a program's operating rules: attendance, punctuality, assignments, conduct in group. It does not convert whatever a provider writes into a term of the sentence.[3]

Applied to this contract, the principle disposes of the terms that matter. The partner-disclosure term contradicts the risk condition (Part III.B). The "accidental" contact term contradicts Special Condition (c) (Part III.C). The ban on "sexually stimulating material(s) of any kind as defined by my treatment staff" bars lawful material the Judgment does not touch; the Judgment forbids only child pornography. Dkt. No. 28 at 5. *Eaglin* holds that a court may not treat lawful adult material "as reprehensible in itself, rather than as an otherwise lawful action," 913 F.3d at 100. It allows a restriction only when a court imposes one on an individualized record, which may include clinical testimony. *Id.* It does not allow a provider to impose one by contract and define its scope as it goes. The platform-approval term makes a private provider the gatekeeper of Mr.

[3] *See supra* note 2. Unlike the condition in *Salvador*, the Treatment Contract delegates several sentencing decisions to the provider: whether Mr. Bernecky may have a sexual relationship, what lawful material he may possess, and which platforms he may use.

Bernecky's email, speech, and social life, although the Judgment assigns internet oversight to the CIMP, and the CIMP already gives Probation notice of new accounts. Ex. A ¶ 6. Discharge for "other problem behavior not outlined," in the staff's "sole discretion," has "no objective baseline." *Reeves*, 591 F.3d at 81. Because discharge is the ordinary predicate for a violation petition, it makes Mr. Bernecky's liberty "contingent on" unreviewable discretion. *Matta*, 777 F.3d at 122. The Treatment Team places the officer who decides whether to seek revocation on the body that decides discharge, which *Browder* identified as beyond the court's oversight. 866 F.3d at 514.

Two further terms create problems the Judgment itself avoided. The contract requires Mr. Bernecky to report any "relapse in problematic behavior" and any "criminal behaviors," routed to his officer and potentially to "law enforcement." Ex. B, Code of Conduct ¶¶ 5–6; Consequences ¶ 1. When the State threatens revocation for invoking the privilege against self-incrimination, "it would have created the classic penalty situation, the failure to assert the privilege would be excused, and the probationer's answers would be deemed compelled and inadmissible in a criminal prosecution." *Minnesota v. Murphy*, 465 U.S. 420, 435 (1984). Where this Court required Mr. Bernecky to answer questions, it expressly preserved his Fifth Amendment rights. Dkt. No. 28 at 5. The contract contains no such protection. And the release authorizes disclosure of "psychotherapy notes," on pain of a claimed violation if it is revoked. Ex. C. Probation's statutory charge is to keep informed "to the degree required by the conditions specified by the sentencing court." 18 U.S.C. § 3603(2). Attendance, participation, progress, diagnosis, treatment plan, and test results tell Probation everything the conditions require it to know. Federal law treats those categories as distinct from psychotherapy notes, which record the content of counseling conversations. 45 C.F.R. § 164.501. The therapist's statement that sex offenders may not take Viagra illustrates how readily a provider's views come to be presented as rules. No condition in the Judgment restricts lawful prescription medication.

The remedy follows. R.K.K.S. may set its own admission and treatment policies as a private practice; Mr. Bernecky does not ask the Court to run the program. He asks the Court to define what its conditions require. "Participate" in Special Conditions (b) and (h) should mean

attending scheduled sessions absent good cause, completing assigned work, and engaging in good faith with treatment regarding the offense of conviction. That definition matches what Mr. Bernecky has committed to do, and it is consistent with the Second Circuit's later affirmance of a violation in *Browder* that rested on the supervisee's refusal to acknowledge his offense of conviction. *United States v. Browder*, No. 17-1238-cr (2d Cir. Mar. 30, 2020) (summary order). A provider rule should be enforceable as a condition only insofar as it implements a condition in the Judgment without contradicting or enlarging it. Discharge from a program should not itself be a violation; the question in any proceeding should be whether Mr. Bernecky failed to participate as so defined.

E. The monitoring program must operate within the limits the Judgment sets

Mr. Bernecky does not challenge the existence of computer monitoring. He asks the Court to enforce the two limits written into Special Condition (a): monitoring must be designed to avoid reading "privileged information," and it must avoid reading "private material that is not illegal or reasonably likely to lead to illegal material." Dkt. No. 28 at 5. Construing the identical condition, the Second Circuit held that "[t]he special condition's text constrains the supervisors in their surveillance . . . by requiring them not to abuse their power and access." *Kunz*, 68 F.4th at 767. *Browder* upheld monitoring as reasonable in part because the vendor "notifies the Probation Office only if it detects 'contraband.'" 866 F.3d at 512. On remand, Judge Vilardo put it directly: "The Probation Office and Remote.com are authorized to search for contraband, not to willy-nilly read whatever they please." *Browder*, No. 1:10-CR-263, Decision & Order.

The program as administered honors neither limit. First, privilege. Mr. Bernecky is litigating against the office that reads his screen, on a device that records what he types. No one has told him how the system is designed to avoid privileged material, or whether his communications with this Court and his drafts of legal papers are excluded. A condition that requires monitoring to be "designed" to avoid privileged material cannot be satisfied by a design no one will describe. The Court should direct Probation to disclose the vendor, what the software captures, who reviews

captures and when, and how long they are retained. It should also order a protocol that excludes or quarantines communications with the Court or counsel and Mr. Bernecky's own litigation materials.

Second, lawful activity. Mr. Bernecky's conversations with adults in online games were "private material that is not illegal." They were read anyway, and what was read became the basis for a prohibition the Court never imposed. The Judgment triggers notice on "impermissible/suspicious activity or communications." Read with *Matta* and *Browder*, "impermissible" means impermissible under the conditions this Court imposed or under law. The Court should so hold, and should hold that monitoring output may not be used to enforce rules that exist only in a Probation directive or a provider's contract.

The Participant Agreement also reaches past the Judgment in ways *Kunz* addressed. A CIMP term that "contradict[s] the express language of the special conditions" "exceed[s] the authority actually delegated by the district court." 68 F.4th at 766. Such a term "may not be enforced as written." *Id.* at 768. Paragraph 2 demands notice of every device Mr. Bernecky "own[s] or ha[s] access to," while the Judgment requires notice of devices "that will be used" and reaches devices "owned or operated." Judge Vilardo rejected the same "access" language because a supervisee "must provide information about only those computers he will use and not all those to which he has 'access,' whatever that means." *Browder*, No. 1:10-CR-263, Decision & Order. The approval terms for encryption, security software, and maintenance are matters of detail under *Kunz*. *Kunz* also holds that such terms "are obviously and reasonably intended to preclude a defendant's active attempts to avoid monitoring, not to punish a passive defendant for innocuous day-to-day activities," and that nothing prevents "blanket permission . . . to install standard program updates." 68 F.4th at 763–64. The Court should adopt that construction expressly: paragraphs 9 and 17 do not reach encryption Mr. Bernecky does not initiate (secure web connections, a phone's default encryption, or encryption built into ordinary messaging), and paragraphs 14 and 15 do not reach automatic or routine updates. And because a monitored phone barred from running security software is exposed to compromise, which harms the integrity of the

monitoring itself, the Court should direct blanket approval of standard antivirus and firewall software compatible with the monitoring.

F. The Court should appoint counsel

Representation "shall be provided for any financially eligible person who . . . faces modification, reduction, or enlargement of a condition . . . of supervised release." 18 U.S.C. § 3006A(a)(1)(E). Before modifying conditions, the Court must hold a hearing "at which the person has the right to counsel." Fed. R. Crim. P. 32.1(c)(1). A person for whom counsel was appointed "shall be represented at every stage of the proceedings . . . through appeal, including ancillary matters appropriate to the proceedings." 18 U.S.C. § 3006A(c). Mr. Bernecky was represented at sentencing by appointed counsel. Dkt. No. 28 at 1; Certification ¶ __. At least one district court has appointed counsel on a supervisee's own motion to clarify conditions where "the issues defendant wishes to raise will require an evidentiary hearing." *United States v. Shannon*, No. 06-cr-179-bbc (W.D. Wis. Mar. 16, 2015). This motion raises disputed facts about Probation's directives and the monitoring system. If the government cross-moves for a risk determination, Mr. Bernecky will face enlargement in the plainest sense. He is financially eligible and will submit a CJA Form 23. Certification ¶ __.

IV. CONCLUSION

Mr. Bernecky respectfully requests an order:

1. Declaring that Standard Condition 12, as amended by the Amended Standing Order of March 22, 2019, governs his supervision; that the Court has made no risk determination under it; and that no person may require him to notify anyone of his criminal history unless the Court first makes that determination after notice, a hearing under Rule 32.1(c), and appointment of counsel;
2. Declaring that neither Probation nor any treatment provider may require him to disclose his offense history to sexual or romantic partners, to provide proof of a partner's "informed consent," or to display his conviction on any online profile, and

that Special Conditions ¶ 2 of the Treatment Contract is not enforceable as a condition of supervised release;

3. Clarifying that Special Condition (c) prohibits only knowing, purposeful contact with a person he knows or has reason to believe is under eighteen; that communicating online with adults, including adults whose age is unverified, does not violate it, provided he ends contact upon learning or having reason to believe a person is a minor; that attending events and places not primarily used by children does not violate it; and that Probation's directive barring speech with anyone he does not personally know is vacated;

4. Approving, under Special Condition (c), his attendance at family gatherings at the homes of his parents and sister, including Thanksgiving, Christmas, and New Year's, when a parent or his sister is present and he has no unsupervised one-on-one contact with any minor;

5. Clarifying that "participate" in Special Conditions (b) and (h) means attending scheduled sessions absent good cause, completing assigned work, and engaging in good faith with treatment regarding the offense of conviction; that provider rules bind as conditions only insofar as they implement a condition in the Judgment without contradicting or enlarging it; that discharge is not itself a violation; and that the Treatment Contract terms identified in Part III.D are not conditions of supervised release;

6. Limiting the treatment release (Ex. C) to attendance, participation, progress, diagnosis, treatment plan, and test results, excluding psychotherapy notes, and clarifying that no condition restricts lawful prescription medication;

7. Directing Probation to disclose the design of the monitoring program and to adopt a protocol excluding or quarantining communications with the Court or counsel and his litigation materials; and clarifying that "impermissible/suspicious activity"

means activity that violates a court-imposed condition or law, and that monitoring output may not be used to enforce any other rule;

8. Conforming paragraph 2 of the Participant Agreement to the Judgment; construing paragraphs 9, 14, 15, and 17 to reach only changes Mr. Bernecky initiates to avoid monitoring; and directing blanket approval of routine updates and compatible security software;

9. Appointing counsel under 18 U.S.C. § 3006A and, if the government objects to any relief, setting a hearing under Rule 32.1(c); and

10. Granting such other relief as the Court finds just.

Dated: October __, 2026
Rochester, New York

Respectfully submitted,

_____

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